

Sample Bidding Documents

Procurement of Works

The World Bank



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Preface

Procurement under projects financed by the International Bank for Reconstruction and Development (the World Bank, hereinafter and throughout these documents called "IBRD") and its affiliate, the International Development Association (IDA)¹, is carried out in accordance with policies and procedures laid down in *Guidelines: Procurement under IBRD Loans and IDA Credits* (hereinafter called IBRD Guidelines for Procurement).

The sample bidding documents in this publication have been prepared for borrowers to use in the procurement of works through international competitive bidding (ICB). Their use is not mandatory, but the procedures and practices they convey have been developed through broad international experience, and they comply with the above guidelines.

This is the second edition of these *Sample Bidding Documents*. It incorporates Part I of the fourth edition of the *FIDIC Conditions of Contract for Works of Civil Engineering Construction* (1987), as well as revisions in other sections, where experience since the first edition of these Documents (1985) counseled such changes. The "Notes and Additional Clauses to Section 3", at the end of this book, explain the differences between Part II of the Conditions of Contract, as included in these Documents, and Part II of the FIDIC Conditions.

To obtain further information on procurement under IBRD- or IDA-assisted projects, contact:

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¹ Since their procurement requirements are identical, "IBRD" in this handbook refers to both IBRD and IDA, and "loan" refers to either an IBRD loan or an IDA credit.

When you draft bidding documents modeled on these samples, substitute IDA for IBRD and credit for loan, where appropriate.

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How to Use this Book

These sample bidding documents are intended to serve as a model for the admeasurement (unit price or unit rate) type of contract, which is the most common in works contracting. **They require substantial modifications to adapt them for use in other forms of works contract, such as lump-sum or turnkey.** They should not be used for "supply and erect" contracts nor for turnkey contracts involving the supply of major equipment. **These documents may not be suitable for small-scale construction contracts.**

Take care to check the relevance of the provisions of the sample documents against the requirements of the specific works to be procured. The following directions should be observed when using the documents:

- (a) All the documents listed in the Contents are normally required for procurement of works. However, they should be adapted as necessary to the circumstances of the particular project or country.
 - (b) **Specific details**, such as the name of the Employer, address for bid submission, etc., should be furnished in the spaces indicated by italicized notes inside parentheses.
 - (c) The footnotes and **"boxed" notes in the sample documents** and italicized notes preceding each sample document and preceding or incorporated in the text are not part of the sample documents, but rather contain guidance and instructions for the user. **Do not incorporate them in actual bidding documents.**
 - (d) Where **alternative clauses or texts** are shown, select those which best suit the particular works and **discard the alternative text which is not used.**
 - (e) The sample documents have been prepared for bidding and bid evaluation when pre- or post-qualification applies. **Carefully select the appropriate alternative clauses to suit the method of qualification used in each case.**
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The process of *pre*qualification of bidders is not covered in these sample documents. Refer to Procurement Technical Note (PTN) No. 3.01, "Qualification of Bidders", issued January 16, 1991, available from the Procurement Policy and Coordination Unit, Central Operations Department, the World Bank.

IBRD borrowers should state if, and to what extent, these sample documents have been used in the preparation of actual bidding documents submitted to the IBRD for review.

Invitation for Bids (IFB)

Notes on the Invitation for Bids

The Invitation for Bids (see IBRD Guidelines for Procurement, para. 2.9) is normally issued as

- an advertisement in at least one newspaper of general circulation in the Employer's country and in the official gazette, if any;
- a circular issued to consular or diplomatic representatives of eligible countries; and as
- a letter addressed to prequalified contractors or to contractors who had expressed interest in bidding for the Works.

Its purpose is to supply information to enable potential bidders to decide on their participation. Apart from the essential items listed in the sample documents, the Invitation should also indicate any important bid evaluation criteria (for example, the application of a margin of preference in bid evaluation).

The Invitation for Bids may be incorporated in the bidding documents merely for the record, or it may be omitted.
